

24STCV15952 24STCV15952

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-09-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C730%2C09%2F17%2F2026

Source SHA-256: 06299bc87d95e88e2ecabfe11c8b1d36e077c20f6e856050959da403c84a905a

Case Number: 24STCV15952 Hearing Date: September 17, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

LUIS

A. ORTIZ,

Plaintiff,

vs.

ELEVANCE

HEALTH, INC., et al.

Defendants.

Case No.:

24STCV15952

Hearing

Date:

September 17, 2026

[TENTATIVE]

ORDER GRANTING MOTIONS TO COMPEL FURTHER
RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET THREE

I. BACKGROUND

Plaintiff

Luis Antonio Ortiz ("Ortiz") was allegedly pretextually terminated from his employment with Defendants for 'job abandonment' during Ortiz's recovery following heart surgery. Ortiz sued Defendants for thirteen causes of action, including harassment and retaliation.

On

July 29, 2026, Ortiz filed the instant motion to compel further responses to Defendant Elevance Health, Inc. ("EH")'s request for production, set three. At the August 20, 2026, hearing on the motion, the Court ordered parties to submit supplemental briefing on remaining requests at issue. Ortiz filed a supplemental brief.

II. LEGAL STANDARD

A motion to compel further response to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Code Civ. Pro., § 2031.310, subd. (b)(1)[1].)

To establish 'good cause,' the burden is on the moving party to show both: (1) relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and (2) specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.)

If 'good cause' is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.)

DISCUSSION

Ortiz supplemental brief requests

the Court order EH provided further responses to Request for Production of Documents, Set Three, requests nos. 63, 65, 67-71, 74-78, and 82-83. The Court also notes Ortiz's supplemental brief addresses "multiple other areas still subject to dispute" in a footnote, with no additional information. As this is not discussed in the text, despite the Court ordering briefing on remaining issues, the Court will not address these issues in the motion.

A.

Request No. 63

Request no. 63 requests "Any and all DOCUMENTS reflecting COMMUNICATIONS between Roxana Sadigh and Andrew Harrell that mention or refer to any of the three candidates for the Senior Underwriting Consultant position that are identified in Roxana Sadigh's email to Andrew Harrell dated January 3, 2023, which is Bates Stamped ELEVANCE_HEALTH_198." (Mot. Helmer Decl. ¶ 2, Ex. 1.)

In

response, EH provided "ELEVANCE_HEALTH_2230-2344," which included e-mails concerning alternative candidates, with the names, resumes, and qualifications redacted. (Ibid.) Ortiz argues that, without designations, he cannot determine whether the same candidates are at issue, track each candidates' treatment across documents, or determine which candidate EH was "moving forward with". As none of these candidates are related to the claims in this action, and therefore should not lose their right to privacy, the Court orders EH to provide updated copies of the redacted documents that identify each candidate by pseudonyms (such as "Candidate A") to allow Ortiz to better understand the context of the e-mails.

B. Requests 68-70

Request

no. 68 requests "Any and all notes, summaries and/or other DOCUMENTS (in any form, including electronic, digital, handwritten or otherwise) taken or prepared by Roxana Sadigh regarding her interviews of each of the three candidates for the Senior Underwriting Consultant position that are identified in Roxana Sadigh's email to Andrew Harrell dated January 3, 2023, which is Bates Stamped ELEVANCE_HEALTH_198 (A true and correct copy of that email is attached hereto as Exhibit 2)." (Ibid.)

Request

no. 69 requests “Any and all notes, summaries and/or other DOCUMENTS (in any form, including electronic, digital, handwritten or otherwise) taken or prepared by Andrew Harrell regarding his interview(s) of any the three candidates for the Senior Underwriting Consultant position that are identified in Roxana Sadigh’s email to Andrew Harrell dated January 3, 2023, which is Bates Stamped ELEVANCE_HEALTH_198 (A true and correct copy of that email is attached hereto as Exhibit 2).” (Ibid.)

Request

no. 70 requests “Request no. 69 requests “Any and all notes, summaries and/or other DOCUMENTS (in any form, including electronic, digital, handwritten or otherwise) taken or prepared by Andrew Harrell regarding his interview(s) of any the three candidates for the Senior Underwriting Consultant position that are identified in Roxana Sadigh’s email to Andrew Harrell dated January 3, 2023, which is Bates Stamped ELEVANCE_HEALTH_198 (A true and correct copy of that email is attached hereto as Exhibit 2).” (Ibid.)

EH responded to all three requests as follows: “Subject to and without waiving the foregoing objections, Defendant responds as follows: Defendant has conducted a diligent search and reasonable inquiry in an effort to comply and it does not have any responsive documents in its possession, custody, or control. Defendant believes the requested item or category of documents never existed or has never been, or is no longer, in the possession, custody, or control of Defendant. Discovery is ongoing and Defendant reserves the right to supplement this response at a later date.” (Ibid.)

Ortiz takes issue with the exact language of EH’s responses, arguing that it does not strictly comply with section 2031.230, in part, because 1) belief is not affirmation; 2) it is unclear on what grounds EH is not in possession of the requested documents; 3) no third party is identified as having possession. The Court agrees, in part, that EH’s responses are unsatisfactory, in that they do not specify why EH is not in possession.

EH is ordered to provide supplemental responses addressing why each set of requested documents is not in EH’s possession. Unless EH is aware or believes a third-party to have access to or ownership of the requested documents, EH does not need to specify the third-party in possession.

C. Request

No. 74.

Request

no. 74 requests “Any and all DOCUMENTS that relate or pertain to the reason(s) a decision was made not to offer a position of employment to the first of the three candidates for the Senior Underwriting Consultant position identified in Roxana Sadigh’s email to Andrew Harrell dated January 3, 2023, which is Bates Stamped ELEVANCE_HEALTH_198 (A true and correct copy of that email is attached hereto as Exhibit 2).” (Ibid.)

In

response, EH provided “ELEVANCE_HEALTH_2389-2398.” (Ibid.) Ortiz argues this is non-responsive as it only indicates that “Candidate 1” is their ‘top pick’, who is ‘qualified and capable to handle the job’, with a ‘good demeanor’. (Mot., Helmer Decl. ¶ 4, Ex. 3.) The Court disagrees; this falls within the broad scope of documents relating to pertaining to decisions made to hire or not hire individuals. Absent evidence indicating there is additional written documentation that EH failed to produce, there is no basis for supplementary responses.

D.

Outstanding

Requests: 65 – 67, 71, 75 – 78, 82-83.

No

further briefing was provided on the subject requests, beyond stating these responses only were given objection-only responses. Therefore, the Court evaluates the original issues presented.

Requests

nos. 65-67, 71, and 75- 78 all concern issues relating to the other candidates applying for the same position as Ortiz: primarily resumes, notes, and communications. The Court orders EH to produce responses, as the request is likely to result in the discovery of relevant and admissible evidence, as well as of probative value when determining if Ortiz was unduly discriminated against compared to other candidates. (See *Gupta v. Trustees of Cal. State Univ.* (2019) 40 Cal. App. 5th 510, 519–521). However, as these candidates have not put themselves at issue, the Court orders all responses be subject to redaction, with each candidate referred to by a consistent pseudonym.

Requests

nos. 82-83 request “Any and all DOCUMENTS (including Excel files) the reflect any input that Susan Millet Reilly provided for MR. ORTIZ’s 2019 performance appraisal (as she testified at page 58:21 – 60:18 of her deposition transcript)[.]” and “Any and all DOCUMENTS that support Susan Millet Reilly’s contention that MR. ORTIZ was not sufficiently responsive to sales partners (as she testified at pages 61:1-14 of her deposition transcript)[.]” respectively. The Court orders EH to provide further responses; the requests are not overly broad and specifically reference conclusions reached at Millet Reilly’s deposition. Documents allegedly barred by attorney-client privilege and/or attorney work product doctrine must be outlined via a privilege log, which the Court will review to determine the applicability of privilege to any responsive documents.

E. Sanctions

Ortiz

requests sanctions totaling \$16,100.00 pursuant to section 2031.310, subdivision (h), on the basis that EH unsuccessfully opposed a motion to compel further responses without substantial justification. The Court does not find it is within the interests of justice to award sanctions, given EH generally acted reasonably in granting Ortiz extensions to file this motion, in order to allow parties to meet and confer. EH also provided further supplementary responses, resolving at least some of the issues previously identified. The Court also does not find a basis to impose sanctions for misuse of the discovery process; EH generally tried to comply with discovery. Therefore, the Court denies Ortiz’s request for sanctions.

IV. CONCLUSION

Based on the foregoing, the motion to compel a further responses to Ortiz’s Request for Productions, Set Three, is GRANTED in limited scope as set forth in this ruling.

Ortiz is ordered to give notice.

DATED: September 17, 2026

Hon. Alexander C.D. Gaza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.

Superior Court of
California

County of Los Angeles

Department
730

LUIS

ANTONIO ORTIZ,

Plaintiff,

vs.

ELEVANCE

HEALTH, INC., et al.,

Defendant.

Case No.:

24STCV15952

Hearing

Date:

September 17, 2026

ORDER

GRANTING MOTION FOR SUMMARY JUDGMENT

I. BACKGROUND

Plaintiff Luis Antonio

Ortiz ("Ortiz") was allegedly pretextually terminated from his employment with Defendants for 'job abandonment' during Ortiz's recovery following heart surgery. Ortiz sued Defendants for thirteen causes of action, including harassment and retaliation.

On May 22, 2026, Defendants

Anthem Blue Cross Life and Health insurance Company ("ABC"), Blue Cross of California ("BCC"), The Elevance Health Companies of California, Inc. ("TEHCC") and Anthem Insurance Companies, Inc. ("AIC") (collectively "Moving Defendants") filed the instant motion for summary judgment. Ortiz filed an opposition. Moving Defendants filed a reply.

II. OBJECTIONS

The Court does not rule on the issue of objections, as the Court need only rule on objections to evidence deemed material to its disposition of the motion. (Code of Civ. Proc. § 437c, subd. (q).)

III. LEGAL STANDARD

A party may move for summary judgment “if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc.[1] § 437c, subd. (a).) “[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law,” the moving party will be entitled to summary judgment. (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

The moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, citing to § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

Neither a moving nor responding party may rely on the mere allegations or denials of its pleadings. A moving party must submit specific admissible evidence showing that the responding party cannot establish at least one element of his, her or its cause of action or defense. The responding party, to defeat the motion, must submit specific admissible evidence showing that a triable issue of material fact does exist as to that element of the cause of action or defense. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

The “Golden Rule” on a motion for summary judgment or summary adjudication is that “if [a fact] is not set forth in the separate statement, it does not exist.” (*Zimmerman*,

Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.).

III. DISCUSSION

Moving Defendants request

the Court enter summary judgment as Moving Defendants did not employ Ortiz, nor are Moving Defendants alter egos or joint ventures of Ortiz's employers.

A. Statement of Facts

Defendant Elevance Health, Inc. ("EH"), formerly known as 'Anthem, Inc.,' employed Ortiz as a senior underwriting consultant at all times relevant to Ortiz's claims. (UMF 1-2.) EH solely administered Ortiz's performance reviews, medical leaves, extensions, disability and medical benefits, and 401(k) plan. (UMF 5-10.) EH had the sole right to control Ortiz's wages, hours, working conditions, hire, transfer, promotions, discipline, termination, and scope of duties. (UMF 19-21.) When Ortiz reapplied for his job, he applied through EH. (UMF 73-77.) He went through an initial screening process solely with EH employees. (UMF 78-81.)

EH terminated Ortiz's employment with EH on October 10, 2022. (UMF 10.) Susan Millet-Reilly ("Millet-Reilly"), Ortiz's supervisor at the time of termination who made the decision to terminate Ortiz, was solely employed by EH. (UMF 11, 14.) Ortiz's two previous supervisors were also solely employment by EH. (UMF 12-13.) Prior to deciding to terminate Ortiz, Millet-Reilly consulted with Kay Olangunju ("Olangunju"), a consultant solely employed by EH. (UMF 15-16.) Following termination, Millet-Reilly requested Ortiz return his equipment to EH's IT team. (UMF 18.)

Defendant The Elevance

Health Companies, Inc. ("TEHCI") is a paymaster entity responsible for handling the administrative aspects of certain services for EH, including processing and disbursing wages and salaries, withholding taxes, and issuing W-2s or other tax documentations. (UMF 23.) TEHCI processed payroll for Ortiz and issued his wage statements and W-2 forms. (UMF 24-25.)

ABC is a subsidiary of a subsidiary of EH; ABC manages health and life insurance policies, but does not have, and has never had, any employees. (UMF 31-32.) ABC has never exercised any control over Ortiz's wages, hours, working conditions, hire, transfer, promotions, discipline, termination, or scope of duties. (UMF 33-35.) Ortiz was never told he worked for ABC, nor are there any documents supporting any connection between ABC and Ortiz, including payroll statements. (UMF 36-40.)

TEHCC is also a subsidiary of a subsidiary of EH; it is a common pay agent used only to process payroll and maintain payroll records. (UMF 41-42.) It has never had any employees. (UMF 43.) TEHCC has never exercised any control over Ortiz's wages, hours, working conditions, hire, transfer, promotions, discipline, termination, or scope of duties. (UMF 44-46.) Ortiz was never told he worked for TEHCC, nor are there any documents supporting any connection between TEHCC and Ortiz, including wage statements. (UMF 47-51.)

AIC is a subsidiary of EH; it underwrites insurance products. (UMF 52-53.) It has never had any employees. (UMF 54.) AIC has never exercised any control over Ortiz's wages, hours, working conditions, hire, transfer, promotions, discipline, termination, or scope of duties. (UMF 55-57.) Ortiz was never told he worked for AIC, nor are there any documents supporting any connection between AIC and Ortiz, including wage statements. (UMF 58-62.)

BCC is also a subsidiary of a subsidiary of EH; it is an entity that offers commercial, Medicare, and Medicaid health plans. (UMF 63-64.) It has never had any employees. (UMF 65.) Since at least January 1, 2019, through Ortiz's termination, BCC has not exercised any control over Ortiz's wages, hours, working conditions, hire, transfer, promotions, discipline, termination, or scope of duties. (UMF 66-68.) Ortiz was never told he worked for BCC, nor are there any documents supporting any connection between BCC and Ortiz, including wage statements. (UMF 69-72.)

There is no agreement between EH and Moving Defendants to form a joint venture. (UMF 85.) There is no jointly owned business unit, division, or operation between EH and Moving Defendants that is related to Ortiz. (UMF 86.)

Ortiz's complaint brings

all 13 causes of action against Moving Defendants. Causes of action for intentional infliction of emotional distress and negligent infliction of emotional distress are based upon the alleged wrongful termination, discrimination, and other faults, done with conscious or negligent disregard for the rights and safety of Ortiz.

B. Employment

Moving Defendants request the Court grant summary judgment as to all causes of action as Moving Defendants were not Ortiz's employers, and thus cannot be liable for violations of FEHA or the labor code. Additionally, Moving Defendants request the Court grant summary judgment as to the intentional infliction of emotional distress ("IIED") and negligent infliction of emotional distress ("NIED") claims, as Moving Defendants were not Ortiz's employers and thus could not have engaged in the extreme and outrageous acts attributable to Ortiz's employer.

Pursuant to the Labor Code, an employer is a person or entity which employs any person or persons to perform services for a wage or salary. (LC § 1132.2.) A person employs another through three alternative means: 1) by exerting control over the wages, hours or working conditions of another person; 2) to suffer or permit to work; or 3) to engage another person, creating a common law employment relationship (Martinez v. Combs (2010) 49 Cal.4th 35, 64.) To establish a party 'suffered' or 'permitted' work, said party must have the power to either cause or prevent another from working under some sort of employment structure. (Futrell v. Payday California, Inc. (2010) 190 Cal.App.4th 1419, 1429.) A common law employment relationship generally evaluates whether the alleged employer had 'control of details,' such as tools, place of business, length of time, method of payment, and supervision. (Ibid.)

The evidence establishes, for purposes of FEHA, the labor code, and this action, Moving Defendants were not Ortiz's employer at the time of termination. Moving Defendants did not control Ortiz's wage, hours, or working conditions. Moving Defendants did not provide equipment or instructions, nor did Moving Defendants control the location or manner in which Ortiz worked. Precision could not hire, fire, promote, demote, discipline, or transfer Ortiz. Moving Defendants had no control of the details of Ortiz's employment.

C. Alter-Ego

/ Single Enterprise

Although Moving Defendants

are subsidiaries of Ortiz's employer, Moving Defendants would only be potentially liable for Ortiz's claims if the ends of justice require the disregarding of the corporate form. (*Laird v. Capital Cities/ABC, Inc.* (1998) 68 Cal. App. 4th 727, 737.) Generally, this must be established via the alter ego doctrine if the entities are operating as a single enterprise. (*Troyk v. Farmers Grp., Inc.* (2009) 171 Cal. App. 4th 1305, 1341.)

For FEHA claims, court utilize the 'integrated enterprise test' to determine if the entities are effectively one enterprise. (*Laird*, 68 Cal. App 4th at 737.) The integrated enterprise test weighs four factors: "interrelation of operations, common management, centralized control of labor relations, and common ownership or financial control." (*Ibid.*) These factors must display control that goes beyond the typical subsidiary-parent corporation relationship (*Id.* at 737-738.) 'The critical question is, "[w]hat entity made the final decisions regarding employment matters related to the person claiming discrimination?"' (*Ibid.*) Here, there is no evidence to support a finding beyond the typical subsidiary-parent corporation relationship; the subsidiaries serve distinct and limited functions and do not participate in Ortiz's employment. Similarly, there is no evidence to suggest EH was an agent of Moving Defendants, or that Moving Defendants controlled Ortiz's employment at the time of termination or rehiring.

In order to impose alter-ego liability, a plaintiff must demonstrate 1) there is a unity of interests and ownerships between two corporations removing all distinction of separate personalities; and 2) an inequitable result would follow if the parties were not held liable for the acts of the other. (*F. Hoffman-La Roche, Ltd. v. Superior Court* (2005) 130 Cal. App. 4th 782, 796.) In order to determine if a corporation satisfies the first prong, the Court reviews an array of factors: comingling of assets, use of corporate assets as personal funds, failure to issue stock, the holding out an individual that they are personally liable for the debts of the corporation, the failure to maintain minutes, sole ownership in a corporation by one individual or family, the use of the same office, identical equitable ownership of two entities, the use of the same office or business location, employment of the same employees or attorney, the failure to adequately capitalize a corporation, the absence of

corporate assets, use of a corporation as a mere shell for a single venture, concealment of ownership or management, disregard of legal formalities, and the formation of the entity to transfer existing liability, among others. (Associated Vendors, Inc. v. Oakland Meat Co. (1962) 210 Cal.App.2d 825, 838-840.)

Here, the Court does not find Moving Defendants have demonstrated facts showing distinction of separate personalities between Moving Defendants and EH. Moving Defendants have primarily shown that Moving Defendants serve distinct business functions on behalf of EH and did not exercise control over Ortiz. They have not provided any other evidence establishing a distinction between entities.

However, the Court does find the evidence shows there would be no inequitable result following absent application of the alter-ego doctrine. Ortiz was solely employed, in name, by EH. EH controlled Ortiz's work, termination, and rehiring. As EH is the parent company of Moving Defendants, EH should be sufficiently funded as to be able to pay out any damages awarded from Ortiz's claims. There is no indication Ortiz will be denied fair trial or judgment absent inclusion of Moving Defendants.

Finally, the Court notes

Moving Defendants are not in joint venture with EH. To establish the existence of a joint venture, the following elements must be shown: "

'There are three basic elements of a joint venture: the members must have joint control over the venture (even though they may delegate it), they must share the profits of the undertaking, and the members must each have an ownership interest in the enterprise.' " (Cochrum v. Costa Victoria Healthcare, LLC (2018) 25 Cal.App.5th 1034, 1053, internal citation omitted.) Here, the evidence shows Moving Defendants did not have joint control over EH's business, specifically in regard to employment. Mere fact there is some control over payroll or insurance does not demonstrate joint control over the entire venture.

Moving Defendants have provided sufficient evidence establishing 1) Moving Defendants did not employ Ortiz and 2) EH's actions are not attributable to Moving Defendants via vicarious liability. Therefore, Moving Defendants have met their burden. The burden shifts to Ortiz.

D. Ortiz's
Opposition

Ortiz first argues he had more than one employer at the time of termination. Ortiz relies upon the fact Ortiz's wage statements and W-2s were issued and maintained by TEHCI, and the fact Millet-Reilly signed off her correspondence as "RVP of Anthem Blue Cross and Blue Shield," a fictitious business name of AIC. (PAMF 22, 24, 46, 54, 56, 66-67.) Ortiz also relies upon the 'supervisory organization' he applied to after his employment was identified as BCC, another subsidiary. (PAMF 54.) Ortiz points to a master services agreement ("MSA") in which ABC pays EH for staffing that expressly includes underwriting, encapsulated by Ortiz's job function. (PAMF 30.)

The Court does not find any of the presented evidence to be indicative of employment under any applicable theory. First, TEHCI is not a moving party, so any connection it had is irrelevant for purposes of employment. At most, Ortiz demonstrated Millet-Reilly also worked within the scope of employment for AIC but did not show Millet-Reilly was working within this scope when firing Ortiz. The evidence overwhelming demonstrates that the applied employment was through EH, not BCC. The MSA is also not indicative of employment or a lack of corporate formalities; in fact, it's more indicative of the two entities being treated as two separate entities, as they are paying each other for services. Also, there is no evidence or claim Ortiz was assigned to ABC under this MSA agreement.

Ortiz also did not provide sufficient evidence to demonstrate EH's actions are attributable to Moving Defendants. Ortiz relies upon the facts Moving Defendants renamed themselves following EH's renaming, that all parties use the same code of conduct, and that Ortiz's employment records indicate all short-term disability policy's apply to all of EH's companies, all parties used the same career portal, and use the same leave, payroll, and termination companies. (PAMF 2, 8, 21, 25, 43, 39, 50-51.) While the Court acknowledges this all demonstrates corporate affiliation, nothing establishes Moving Defendants controlled Ortiz in such a manner to make decisions pertaining to the alleged discriminatory behavior or in such a manner that would make alter-ego liability necessary to obtain a just result. At no point did Ortiz perform work at the direction of or for Moving Defendants.

Ortiz has failed to meet his shifted burden. Therefore, the Court grants summary judgment.

IV. CONCLUSION

Moving Defendants' motion
for summary judgment is GRANTED.

Moving Defendants are to give notice.

DATED:

September 17, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer
after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this
tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT"
followed by
the case number. The body of the email must include the hearing date and time,
counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this
tentative ruling, the parties should arrange to appear remotely (encouraged) or
in person for oral argument. You should assume that others may appear at the
hearing to argue.
- If the parties neither submit nor appear at
hearing, the Court may take the motion off calendar or adopt the tentative
ruling as the order of the Court. After the Court has issued a tentative
ruling, the Court may prohibit the withdrawal of the subject motion without
leave.

[1] Undesignated statutory references are to the Code of Civil
Procedure.